



Reprinted
January 21, 2026

HOUSE BILL No. 1303

DIGEST OF HB 1303 (Updated January 20, 2026 2:51 pm - DI 106)

Citations Affected: IC 4-13; IC 10-13; IC 11-8; IC 11-13; IC 22-5; IC 31-9; IC 31-14; IC 31-17; IC 33-37; IC 33-39; IC 35-31.5; IC 35-36; IC 35-38; IC 35-42; IC 35-49; IC 35-50.

Synopsis: Child sexual abuse material crimes. Removes provisions concerning possession of child sex abuse material (CSAM) from the statute containing the offense of child exploitation, and makes a new section for CSAM offenses. Creates a new crime for distribution of CSAM, and generally conforms the sentencing enhancements for possession of CSAM, distribution of CSAM, and child exploitation. Specifies that certain restrictions on CSAM in discovery also apply in civil proceedings (under current law, they only apply in criminal proceedings). Provides a defense in specified circumstances. Removes certain duplicative provisions and makes conforming amendments and technical corrections.

Effective: July 1, 2026.

**McNamara, Karickhoff, Meltzer,
Pressel**

January 6, 2026, read first time and referred to Committee on Courts and Criminal Code.
January 14, 2026, amended, reported — Do Pass.
January 20, 2026, read second time, amended, ordered engrossed.

HB 1303—LS 6764/DI 106



Reprinted
January 21, 2026

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1303

A BILL FOR AN ACT to amend the Indiana Code concerning criminal law and procedure.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 4-13-2-14.7, AS AMENDED BY P.L.13-2016,
2 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]: Sec. 14.7. A person employed, appointed, or under
4 contract with a state agency, who works with or around children, shall
5 be dismissed (after the appropriate pre-deprivation procedure has
6 occurred) if that person is, or has ever been, convicted of any of the
7 following:
8 (1) Rape (IC 35-42-4-1), if the victim is less than eighteen (18)
9 years of age.
10 (2) Criminal deviate conduct (IC 35-42-4-2) (before its repeal), if
11 the victim is less than eighteen (18) years of age.
12 (3) Child molesting (IC 35-42-4-3).
13 (4) Child exploitation (~~IC 35-42-4-4(b) or IC 35-42-4-4(c)~~).
14 **(IC 35-42-4-4).**
15 (5) Vicarious sexual gratification (IC 35-42-4-5).
16 (6) Child solicitation (IC 35-42-4-6).
17 (7) Child seduction (IC 35-42-4-7).

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(8) Sexual misconduct with a minor (IC 35-42-4-9) as a Class A or Class B felony (for a crime committed before July 1, 2014) or a Level 1, Level 2, or Level 4 felony (for a crime committed after June 30, 2014).

(9) Incest (IC 35-46-1-3), if the victim is less than eighteen (18) years of age.

SECTION 2. IC 10-13-3-27, AS AMENDED BY P.L.218-2025, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 27. (a) Except as provided in subsection (b), on request, a law enforcement agency shall release a limited criminal history to or allow inspection of a limited criminal history by noncriminal justice organizations or individuals only if the subject of the request:

(1) has applied for employment with a noncriminal justice organization or individual;

(2) has:

(A) applied for a license or is maintaining a license; and

(B) provided criminal history data as required by law to be provided in connection with the license;

(3) is a candidate for public office or a public official;

(4) is in the process of being apprehended by a law enforcement agency;

(5) is placed under arrest for the alleged commission of a crime;

(6) has charged that the subject's rights have been abused repeatedly by criminal justice agencies;

(7) is the subject of a judicial decision or determination with respect to the setting of bond, plea bargaining, sentencing, or probation;

(8) has volunteered services that involve contact with, care of, or supervision over a child who is being placed, matched, or monitored by a social services agency or a nonprofit corporation;

(9) is currently residing in a location designated by the department of child services (established by IC 31-25-1-1) or by a juvenile court as the out-of-home placement for a child at the time the child will reside in the location;

(10) has volunteered services at a public school (as defined in IC 20-18-2-15) or nonpublic school (as defined in IC 20-18-2-12) that involve contact with, care of, or supervision over a student enrolled in the school;

(11) is being investigated for welfare fraud by an investigator of the division of family resources or a county office of the division of family resources;



(12) is being sought by the parent locator service of the child support bureau of the department of child services;

(13) is or was required to register as a sex or violent offender under IC 11-8-8;

(14) has been convicted of any of the following:

(A) Rape (IC 35-42-4-1), if the victim is less than eighteen (18) years of age.

(B) Criminal deviate conduct (IC 35-42-4-2) (repealed), if the victim is less than eighteen (18) years of age.

(C) Child molesting (IC 35-42-4-3).

(D) Child exploitation (~~IC 35-42-4-4(b) or IC 35-42-4-4(c)~~). **(IC 35-42-4-4).**

(E) Possession of child sex abuse material (IC 35-42-4-4(d) or IC 35-42-4-4(e)) **(before July 1, 2026), or a child sex abuse material offense described in IC 35-42-4-4.5 (after June 30, 2026).**

(F) Vicarious sexual gratification (IC 35-42-4-5).

(G) Child solicitation (IC 35-42-4-6).

(H) Child seduction (IC 35-42-4-7).

(I) Sexual misconduct with a minor as a felony (IC 35-42-4-9).

(J) Incest (IC 35-46-1-3), if the victim is less than eighteen (18) years of age;

(15) is identified as a possible perpetrator of child abuse or neglect in an assessment conducted by the department of child services under IC 31-33-8; or

(16) is:

(A) a parent, guardian, or custodian of a child; or

(B) an individual who is at least eighteen (18) years of age and resides in the home of the parent, guardian, or custodian;

with whom the department of child services or a county probation department has a case plan, dispositional decree, or permanency plan approved under IC 31-34 or IC 31-37 that provides for reunification following an out-of-home placement.

However, limited criminal history information obtained from the National Crime Information Center may not be released under this section except to the extent permitted by the Attorney General of the United States.

(b) A law enforcement agency shall allow inspection of a limited criminal history by and release a limited criminal history to the following noncriminal justice organizations:

(1) Federally chartered or insured banking institutions.

(2) Officials of state and local government for any of the



following purposes:

- (A) Employment with a state or local governmental entity.
- (B) Licensing.
- (3) Segments of the securities industry identified under 15 U.S.C. 78q(f)(2).

(c) Any person who knowingly or intentionally uses limited criminal history for any purpose not specified under this section commits a Class C infraction. However, the violation is a Class A misdemeanor if the person has a prior unrelated adjudication or conviction for a violation of this section within the previous five (5) years.

SECTION 3. IC 11-8-8-4.5, AS AMENDED BY P.L.218-2025, SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4.5. (a) Except as provided in section 22 of this chapter, as used in this chapter, "sex offender" means a person convicted of any of the following offenses:

- (1) Rape (IC 35-42-4-1).
- (2) Criminal deviate conduct (IC 35-42-4-2) (before its repeal).
- (3) Child molesting (IC 35-42-4-3).
- (4) Child exploitation (~~IC 35-42-4-4(b) or IC 35-42-4-4(c)~~); **(IC 35-42-4-4).**
- (5) Vicarious sexual gratification (including performing sexual conduct in the presence of a minor) (IC 35-42-4-5).
- (6) Child solicitation (IC 35-42-4-6).
- (7) Child seduction (IC 35-42-4-7).
- (8) Sexual misconduct with a minor (IC 35-42-4-9) as a Class A, Class B, or Class C felony (for a crime committed before July 1, 2014) or a Level 1, Level 2, Level 4, or Level 5 felony (for a crime committed after June 30, 2014), unless:
 - (A) the person is convicted of sexual misconduct with a minor as a Class C felony (for a crime committed before July 1, 2014) or a Level 5 felony (for a crime committed after June 30, 2014);
 - (B) the person is not more than:
 - (i) four (4) years older than the victim if the offense was committed after June 30, 2007; or
 - (ii) five (5) years older than the victim if the offense was committed before July 1, 2007; and
 - (C) the sentencing court finds that the person should not be required to register as a sex offender.
- (9) Incest (IC 35-46-1-3).
- (10) Sexual battery (IC 35-42-4-8).
- (11) Kidnapping (IC 35-42-3-2), if the victim is less than eighteen



(18) years of age, and the person who kidnapped the victim is not the victim's parent or guardian.

(12) Criminal confinement (IC 35-42-3-3), if the victim is less than eighteen (18) years of age, and the person who confined or removed the victim is not the victim's parent or guardian.

(13) Possession of child sex abuse material (IC 35-42-4-4(d) or IC 35-42-4-4(e)) **(before July 1, 2026), or a child sex abuse material offense under IC 35-42-4-4.5 (after June 30, 2026).**

(14) Promoting prostitution (IC 35-45-4-4) as a Class B felony (for a crime committed before July 1, 2014) or a Level 4 felony (for a crime committed after June 30, 2014).

(15) Promotion of human sexual trafficking under IC 35-42-3.5-1.1.

(16) Promotion of child sexual trafficking under IC 35-42-3.5-1.2(a).

(17) Promotion of sexual trafficking of a younger child (IC 35-42-3.5-1.2(c)).

(18) Child sexual trafficking (IC 35-42-3.5-1.3).

(19) Human trafficking under IC 35-42-3.5-1.4 if the victim is less than eighteen (18) years of age.

(20) Sexual misconduct by a service provider with a detained or supervised child (IC 35-44.1-3-10(c)).

(b) The term includes:

(1) a person who is required to register as a sex offender in any jurisdiction; and

(2) a child who has committed a delinquent act, or a person prosecuted under IC 31-30-1-4(d) for an offense described in subsection (a) committed when the person was less than eighteen (18) years of age, but who was at least twenty-one (21) years of age when the charge was filed, and who:

(A) is at least fourteen (14) years of age;

(B) is on probation, is on parole, is discharged from a facility by the department of correction, is discharged from a secure private facility (as defined in IC 31-9-2-115), or is discharged from a juvenile detention facility as a result of an adjudication as a delinquent child for an act that would be an offense described in subsection (a) if committed by an adult; and

(C) is found by a court by clear and convincing evidence to be likely to repeat an act that would be an offense described in subsection (a) if committed by an adult.

(c) In making a determination under subsection (b)(2)(C), the court shall consider expert testimony concerning whether a child is likely to



1 repeat an act that would be an offense described in subsection (a) if
2 committed by an adult.

3 (d) A person ordered to register under subsection (b)(2) may
4 petition the court to reconsider the order at any time after completing
5 court ordered sex offender treatment. The court shall consider expert
6 testimony concerning whether a child or person is likely to repeat an
7 offense described in subsection (a) or an act that would be an offense
8 described in subsection (a) if committed by an adult.

9 SECTION 4. IC 11-8-8-5, AS AMENDED BY P.L.218-2025,
10 SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
11 JULY 1, 2026]: Sec. 5. (a) Except as provided in section 22 of this
12 chapter, as used in this chapter, "sex or violent offender" means a
13 person convicted of any of the following offenses:

- 14 (1) Rape (IC 35-42-4-1).
- 15 (2) Criminal deviate conduct (IC 35-42-4-2) (before its repeal).
- 16 (3) Child molesting (IC 35-42-4-3).
- 17 (4) Child exploitation (~~IC 35-42-4-4(b) or IC 35-42-4-4(c)~~);
- 18 **(IC 35-42-4-4).**
- 19 (5) Vicarious sexual gratification (including performing sexual
- 20 conduct in the presence of a minor) (IC 35-42-4-5).
- 21 (6) Child solicitation (IC 35-42-4-6).
- 22 (7) Child seduction (IC 35-42-4-7).
- 23 (8) Sexual misconduct with a minor (IC 35-42-4-9) as a Class A,
- 24 Class B, or Class C felony (for a crime committed before July 1,
- 25 2014) or a Level 1, Level 2, Level 4, or Level 5 felony (for a
- 26 crime committed after June 30, 2014), unless:
 - 27 (A) the person is convicted of sexual misconduct with a minor
 - 28 as a Class C felony (for a crime committed before July 1,
 - 29 2014) or a Level 5 felony (for a crime committed after June
 - 30 30, 2014);
 - 31 (B) the person is not more than:
 - 32 (i) four (4) years older than the victim if the offense was
 - 33 committed after June 30, 2007; or
 - 34 (ii) five (5) years older than the victim if the offense was
 - 35 committed before July 1, 2007; and
 - 36 (C) the sentencing court finds that the person should not be
 - 37 required to register as a sex offender.
- 38 (9) Incest (IC 35-46-1-3).
- 39 (10) Sexual battery (IC 35-42-4-8).
- 40 (11) Kidnapping (IC 35-42-3-2), if the victim is less than eighteen
- 41 (18) years of age, and the person who kidnapped the victim is not
- 42 the victim's parent or guardian.



(12) Criminal confinement (IC 35-42-3-3), if the victim is less than eighteen (18) years of age, and the person who confined or removed the victim is not the victim's parent or guardian.

(13) Possession of child sex abuse material (IC 35-42-4-4(d) or IC 35-42-4-4(e)) **(before July 1, 2026), or a child sex abuse material offense under IC 35-42-4-4.5 (after June 30, 2026).**

(14) Promoting prostitution (IC 35-45-4-4) as a Class B felony (for a crime committed before July 1, 2014) or a Level 4 felony (for a crime committed after June 30, 2014).

(15) Promotion of human sexual trafficking under IC 35-42-3.5-1.1.

(16) Promotion of child sexual trafficking under IC 35-42-3.5-1.2(a).

(17) Promotion of sexual trafficking of a younger child (IC 35-42-3.5-1.2(c)).

(18) Child sexual trafficking (IC 35-42-3.5-1.3).

(19) Human trafficking under IC 35-42-3.5-1.4 if the victim is less than eighteen (18) years of age.

(20) Murder (IC 35-42-1-1).

(21) Voluntary manslaughter (IC 35-42-1-3).

(22) Sexual misconduct by a service provider with a detained or supervised child (IC 35-44.1-3-10(c)).

(b) The term includes:

(1) a person who is required to register as a sex or violent offender in any jurisdiction; and

(2) a child who has committed a delinquent act, or a person prosecuted under IC 31-30-1-4(d) for an offense described in subsection (a) committed when the person was less than eighteen (18) years of age, but who was at least twenty-one (21) years of age when the charge was filed, and who:

(A) is at least fourteen (14) years of age;

(B) is on probation, is on parole, is discharged from a facility by the department of correction, is discharged from a secure private facility (as defined in IC 31-9-2-115), or is discharged from a juvenile detention facility as a result of an adjudication as a delinquent child for an act that would be an offense described in subsection (a) if committed by an adult; and

(C) is found by a court by clear and convincing evidence to be likely to repeat an act that would be an offense described in subsection (a) if committed by an adult.

(c) In making a determination under subsection (b)(2)(C), the court shall consider expert testimony concerning whether a child is likely to



1 repeat an act that would be an offense described in subsection (a) if
2 committed by an adult.

3 (d) A person ordered to register under subsection (b)(2) may
4 petition the court to reconsider the order at any time after completing
5 court ordered sex offender treatment. The court shall consider expert
6 testimony concerning whether a child or person is likely to repeat an
7 offense described in subsection (a) or an act that would be an offense
8 described in subsection (a) if committed by an adult.

9 SECTION 5. IC 11-13-3-11, AS AMENDED BY P.L.218-2025,
10 SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
11 JULY 1, 2026]: Sec. 11. (a) As used in this section, "Internet crime
12 against a child" means a conviction for a violation of:

13 (1) ~~IC 35-42-4-4(b)~~ or ~~IC 35-42-4-4(c)~~ IC 35-42-4-4 (child
14 exploitation);

15 (2) IC 35-42-4-4(d) or IC 35-42-4-4(e) (possession of child sex
16 abuse material) **(before July 1, 2026), or a child sex abuse**
17 **material offense under IC 35-42-4-4.5 (after June 30, 2026);**
18 or

19 (3) IC 35-42-4-6 (child solicitation).

20 (b) When a person is placed on lifetime parole, the department shall
21 provide the parolee with a written statement of the conditions of
22 lifetime parole. The parolee shall sign the statement, retain a copy, and
23 provide a copy to the department. The department shall place the
24 signed statement in the parolee's master file.

25 (c) As a condition of lifetime parole, the parole board shall:

26 (1) require a parolee who is a sexually violent predator (as defined
27 in IC 35-38-1-7.5) to:

28 (A) inform the parolee's parole agent of any changes to the
29 parolee's residence, employment, or contact information not
30 later than seventy-two (72) hours after the change;

31 (B) report to the parole agent as instructed;

32 (C) avoid contact with any person who is less than sixteen (16)
33 years of age, unless the parolee receives written authorization
34 from the parole board; and

35 (D) avoid contact with the victim of any sex crime committed
36 by that parolee, unless the parolee receives written
37 authorization from the parole board;

38 (2) prohibit a parolee who is a sexually violent predator convicted
39 of an Internet crime against a child from:

40 (A) accessing or using certain websites, chat rooms, or instant
41 messaging programs frequented by children; and

42 (B) deleting, erasing, or tampering with data on the parolee's



- 1 personal computer;
- 2 (3) prohibit a parolee who is a sexually violent predator from
- 3 owning, operating, managing, being employed by, or volunteering
- 4 at an attraction designed to be primarily enjoyed by a child less
- 5 than sixteen (16) years of age; and
- 6 (4) require a parolee to allow the parolee's supervising parole
- 7 agent or another person authorized by the parole board to visit the
- 8 parolee's residence, real property, or place of employment.
- 9 (d) As a condition of lifetime parole, the parole board may require
- 10 a sexually violent predator to participate in a sex offender treatment
- 11 program approved by the parole board.
- 12 (e) As a condition of lifetime parole, the parole board may require
- 13 a parolee who is:
- 14 (1) a sexually violent predator; or
- 15 (2) required to register as a sex or violent offender under
- 16 IC 11-8-8-5 due to a conviction for murder (IC 35-42-1-1) or
- 17 voluntary manslaughter (IC 35-42-1-3);
- 18 to wear a monitoring device (as described in IC 35-38-2.5-3) that can
- 19 transmit information twenty-four (24) hours each day regarding a
- 20 person's precise location, subject to a validated sex offender risk
- 21 assessment or appropriate violent offender risk assessment, and subject
- 22 to the amount appropriated to the department for a monitoring program
- 23 as a condition of lifetime parole.
- 24 (f) When an offender is placed on lifetime parole, the parole board
- 25 shall inform the sheriff and the prosecuting attorney of the offender's
- 26 current county of residence:
- 27 (1) that the offender has been placed on lifetime parole; and
- 28 (2) whether the offender is required to wear a monitoring device
- 29 as described in subsection (e).
- 30 (g) The parole board may adopt rules under IC 4-22-2 to impose
- 31 additional conditions of lifetime parole and to implement this section.
- 32 SECTION 6. IC 22-5-5-1, AS AMENDED BY P.L.13-2016,
- 33 SECTION 7, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
- 34 JULY 1, 2026]: Sec. 1. The employment contract of a person who:
- 35 (1) works with children; and
- 36 (2) is convicted of:
- 37 (A) rape (IC 35-42-4-1), if the victim is less than eighteen (18)
- 38 years of age;
- 39 (B) criminal deviate conduct (IC 35-42-4-2) (repealed), if the
- 40 victim is less than eighteen (18) years of age;
- 41 (C) child molesting (IC 35-42-4-3);
- 42 (D) child exploitation (~~IC 35-42-4-4(b) or IC 35-42-4-4(c)~~);



- 1 **(IC 35-42-4-4);**
 2 (E) vicarious sexual gratification (IC 35-42-4-5);
 3 (F) child solicitation (IC 35-42-4-6);
 4 (G) child seduction (IC 35-42-4-7); or
 5 (H) incest (IC 35-46-1-3), if the victim is less than eighteen
 6 (18) years of age;
 7 may be canceled by the person's employer.
 8 SECTION 7. IC 31-9-2-133.1, AS AMENDED BY P.L.172-2022,
 9 SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 10 JULY 1, 2026]: Sec. 133.1. "Victim of human or sexual trafficking",
 11 for purposes of IC 31-34-1-3.5, refers to a child who is recruited,
 12 harbored, transported, or engaged in:
 13 (1) forced labor;
 14 (2) involuntary servitude;
 15 (3) prostitution;
 16 (4) juvenile prostitution, as defined in IC 35-31.5-2-178.5;
 17 (5) child exploitation ~~as defined in IC 35-42-4-4(b);~~ **under**
 18 **IC 35-42-4-4;**
 19 (6) marriage, unless authorized by a court under IC 31-11-1-7;
 20 (7) trafficking for the purpose of prostitution, juvenile
 21 prostitution, or participation in sexual conduct as defined in
 22 IC 35-42-4-4(a); or
 23 (8) human trafficking as defined in IC 35-42-3.5-0.5.
 24 SECTION 8. IC 31-14-14-1, AS AMENDED BY P.L.223-2019,
 25 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 26 JULY 1, 2026]: Sec. 1. (a) A noncustodial parent is entitled to
 27 reasonable parenting time rights unless the court finds, after a hearing,
 28 that parenting time might:
 29 (1) endanger the child's physical health and well-being; or
 30 (2) significantly impair the child's emotional development.
 31 (b) The court may interview the child in chambers to assist the court
 32 in determining the child's perception of whether parenting time by the
 33 noncustodial parent might endanger the child's physical health or
 34 significantly impair the child's emotional development.
 35 (c) In a hearing under subsection (a), there is a rebuttable
 36 presumption that a person who has been convicted of:
 37 (1) child molesting (IC 35-42-4-3); or
 38 (2) child exploitation ~~(IC 35-42-4-4(b) or IC 35-42-4-4(c));~~
 39 **(IC 35-42-4-4);**
 40 might endanger the child's physical health and well-being or
 41 significantly impair the child's emotional development.
 42 (d) Except as provided in subsection (e), if a court grants parenting



time rights to a person who has been convicted of:

(1) child molesting (IC 35-42-4-3); or

(2) child exploitation (~~IC 35-42-4-4(b) or IC 35-42-4-4(c);~~
(IC 35-42-4-4);

there is a rebuttable presumption that the parenting time with the child must be supervised.

(e) If a court grants parenting time rights to a person who has been convicted of:

(1) child molesting (IC 35-42-4-3); or

(2) child exploitation (~~IC 35-42-4-4(b) or IC 35-42-4-4(c);~~
(IC 35-42-4-4);

within the previous five (5) years, the court shall order that the parenting time with the child must be supervised.

(f) The court may permit counsel to be present at the interview. If counsel is present:

(1) a record may be made of the interview; and

(2) the interview may be made part of the record for purposes of appeal.

SECTION 9. IC 31-17-4-1, AS AMENDED BY P.L.146-2021, SECTION 7, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. (a) Subject to subsections (d) and (e) and subject to section 1.1 of this chapter, a parent not granted custody of the child is entitled to reasonable parenting time rights unless the court finds, after a hearing, that parenting time by the noncustodial parent might endanger the child's physical health or significantly impair the child's emotional development.

(b) The court may interview the child in chambers to assist the court in determining the child's perception of whether parenting time by the noncustodial parent might endanger the child's physical health or significantly impair the child's emotional development.

(c) The court may permit counsel to be present at the interview. If counsel is present:

(1) a record may be made of the interview; and

(2) the interview may be made part of the record for purposes of appeal.

(d) Except as provided in subsection (e), if a court grants parenting time rights to a person who has been convicted of:

(1) child molesting (IC 35-42-4-3); or

(2) child exploitation (~~IC 35-42-4-4(b) or IC 35-42-4-4(c);~~
(IC 35-42-4-4);

there is a rebuttable presumption that the parenting time with the child must be supervised.



(e) If a court grants parenting time rights to a person who has been convicted of:

(1) child molesting (IC 35-42-4-3); or

(2) child exploitation (~~IC 35-42-4-4(b) or IC 35-42-4-4(c)~~);

(IC 35-42-4-4);

within the previous five (5) years, the court shall order that the parenting time with the child must be supervised.

SECTION 10. IC 33-37-5-23, AS AMENDED BY P.L.144-2018, SECTION 10, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 23. (a) This section applies to criminal actions.

(b) The court shall assess a sexual assault victims assistance fee of at least five hundred dollars (\$500) and not more than five thousand dollars (\$5,000) against an individual convicted in Indiana of any of the following offenses:

(1) Rape (IC 35-42-4-1).

(2) Criminal deviate conduct (IC 35-42-4-2) (before its repeal).

(3) Child molesting (IC 35-42-4-3).

(4) Child exploitation (~~IC 35-42-4-4(b) or IC 35-42-4-4(c)~~);

(IC 35-42-4-4).

(5) Vicarious sexual gratification (IC 35-42-4-5).

(6) Child solicitation (IC 35-42-4-6).

(7) Child seduction (IC 35-42-4-7).

(8) Sexual battery (IC 35-42-4-8).

(9) Sexual misconduct with a minor as a Class A or Class B felony (for a crime committed before July 1, 2014) or a Level 1 felony or Level 4 felony (for a crime committed after June 30, 2014) (IC 35-42-4-9).

(10) Incest (IC 35-46-1-3).

(11) Promotion of human labor trafficking (IC 35-42-3.5-1).

(12) Promotion of human sexual trafficking (IC 35-42-3.5-1.1).

(13) Promotion of child sexual trafficking (IC 35-42-3.5-1.2(a)).

(14) Promotion of sexual trafficking of a younger child (IC 35-42-3.5-1.2(c)).

(15) Child sexual trafficking (IC 35-42-3.5-1.3).

(16) Human trafficking (IC 35-42-3.5-1.4).

SECTION 11. IC 33-39-1-9, AS AMENDED BY P.L.13-2016, SECTION 10, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 9. A prosecuting attorney who charges a person with committing any of the following shall inform the person's employer of the charge, unless the prosecuting attorney determines that the person charged does not work with children:

(1) Rape (IC 35-42-4-1), if the victim is less than eighteen (18)



years of age.

(2) Criminal deviate conduct (IC 35-42-4-2) (repealed), if the victim is less than eighteen (18) years of age.

(3) Child molesting (IC 35-42-4-3).

(4) Child exploitation (~~IC 35-42-4-4(b) or IC 35-42-4-4(c)~~); **(IC 35-42-4-4).**

(5) Vicarious sexual gratification (IC 35-42-4-5).

(6) Child solicitation (IC 35-42-4-6).

(7) Child seduction (IC 35-42-4-7).

(8) Incest (IC 35-46-1-3), if the victim is less than eighteen (18) years of age.

SECTION 12. IC 35-31.5-2-98 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 98: "Disseminate", for purposes of ~~IC 35-42-4-4~~, has the meaning set forth in ~~IC 35-42-4-4(a)~~.

SECTION 13. IC 35-31.5-2-196, AS ADDED BY P.L.114-2012, SECTION 67, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 196. (a) "Matter", for purposes of ~~IC 35-42-4-4~~, has the meaning set forth in ~~IC 35-42-4-4(a)~~.

(b) "Matter", for purposes of IC 35-49, has the meaning set forth in IC 35-49-1-3.

SECTION 14. IC 35-31.5-2-233, AS ADDED BY P.L.114-2012, SECTION 67, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 233. (a) "Performance", for purposes of ~~IC 35-42-4-4~~, has the meaning set forth in ~~IC 35-42-4-4(a)~~.

(b) "Performance", for purposes of IC 35-49, has the meaning set forth in IC 35-49-1-7.

SECTION 15. IC 35-31.5-2-300, AS AMENDED BY P.L.144-2018, SECTION 15, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 300. (a) "Sexual conduct", for purposes of IC 35-42-3.5-0.5 and IC 35-42-4-4, has the meaning set forth in ~~IC 35-42-4-4(a)~~; **IC 35-42-4-4.**

(b) "Sexual conduct", for purposes of IC 35-49, has the meaning set forth in IC 35-49-1-9.

SECTION 16. IC 35-36-10-1, AS ADDED BY P.L.148-2011, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. This chapter applies ~~only~~ in a criminal **or civil** proceeding.

SECTION 17. IC 35-36-10-2, AS AMENDED BY P.L.218-2025, SECTION 12, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. As used in this chapter, "child sex abuse material" includes:

(1) material described in ~~IC 35-42-4-4(d)~~; **IC 35-42-4-4.5**; and



(2) material defined in 18 U.S.C. 2256(8).

SECTION 18. IC 35-36-10-3, AS AMENDED BY P.L.218-2025, SECTION 13, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. In any criminal proceeding **or civil proceeding**, material constituting child sex abuse material must remain in the custody of the state or the court.

SECTION 19. IC 35-36-10-4, AS AMENDED BY P.L.218-2025, SECTION 14, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. A court shall deny any request by the defendant in a criminal proceeding, **or any party in a civil proceeding**, to copy, photograph, duplicate, or otherwise reproduce any material that constitutes child sex abuse material if the state **(in a criminal proceeding), or the court (in a civil proceeding)**, provides ample opportunity for inspection, viewing, and examination of the material by:

- (1) the defendant **(in a criminal proceeding);**
- (2) the defendant's attorney **(in a criminal proceeding); and**
- (3) any individual the defendant seeks to qualify as an expert **(in a criminal proceeding);**
- (4) **any party and the party's attorney (in a civil proceeding);**
- and**
- (5) **any individual a party seeks to qualify as an expert (in a civil proceeding);**

at a state or local court or law enforcement facility as provided in section 5 of this chapter.

SECTION 20. IC 35-38-2-2.5, AS AMENDED BY P.L.13-2016, SECTION 13, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2.5. (a) As used in this section, "offender" means an individual convicted of a sex offense.

(b) As used in this section, "sex offense" **has the meaning set forth in IC 11-8-8-5.2. means any of the following:**

- ~~(1) Rape (IC 35-42-4-1);~~
- ~~(2) Criminal deviate conduct (IC 35-42-4-2) (repealed);~~
- ~~(3) Child molesting (IC 35-42-4-3);~~
- ~~(4) Child exploitation (IC 35-42-4-4(b) or IC 35-42-4-4(c));~~
- ~~(5) Vicarious sexual gratification (IC 35-42-4-5);~~
- ~~(6) Child solicitation (IC 35-42-4-6);~~
- ~~(7) Child seduction (IC 35-42-4-7);~~
- ~~(8) Sexual battery (IC 35-42-4-8);~~
- ~~(9) Sexual misconduct with a minor as a felony (IC 35-42-4-9);~~
- ~~(10) Incest (IC 35-46-1-3);~~

(c) A condition of remaining on probation or parole after conviction



for a sex offense is that the offender not reside within one (1) mile of the residence of the victim of the offender's sex offense.

(d) An offender:

(1) who will be placed on probation shall provide the sentencing court and the probation department with the address where the offender intends to reside during the period of probation:

(A) at the time of sentencing if the offender will be placed on probation without first being incarcerated; or

(B) before the offender's release from incarceration if the offender will be placed on probation after completing a term of incarceration; or

(2) who will be placed on parole shall provide the parole board with the address where the offender intends to reside during the period of parole.

(e) An offender, while on probation or parole, may not establish a new residence within one (1) mile of the residence of the victim of the offender's sex offense unless the offender first obtains a waiver from the:

(1) court, if the offender is placed on probation; or

(2) parole board, if the offender is placed on parole;

for the change of address under subsection (f).

(f) The court or parole board may waive the requirement set forth in subsection (c) only if the court or parole board, at a hearing at which the offender is present and of which the prosecuting attorney has been notified, determines that:

(1) the offender has successfully completed a sex offender treatment program during the period of probation or parole;

(2) the offender is in compliance with all terms of the offender's probation or parole; and

(3) good cause exists to allow the offender to reside within one (1) mile of the residence of the victim of the offender's sex offense.

However, the court or parole board may not grant a waiver under this subsection if the offender is a sexually violent predator under IC 35-38-1-7.5 or if the offender is an offender against children under IC 35-42-4-11.

(g) If the court or parole board grants a waiver under subsection (f), the court or parole board shall state in writing the reasons for granting the waiver. The court's written statement of its reasons shall be incorporated into the record.

(h) The address of the victim of the offender's sex offense is confidential even if the court or parole board grants a waiver under subsection (f).



SECTION 21. IC 35-42-3.5-1.2, AS AMENDED BY P.L.186-2025,
 SECTION 233, IS AMENDED TO READ AS FOLLOWS
 [EFFECTIVE JULY 1, 2026]: Sec. 1.2. (a) A person who knowingly or
 intentionally recruits, entices, harbors, or transports a child less than
 eighteen (18) years of age with the intent of causing the child to engage
 in:

- (1) prostitution or juvenile prostitution; or
- (2) a performance or incident that includes sexual conduct in
 violation of ~~IC 35-42-4-4(b)~~ or ~~IC 35-42-4-4(c)~~ **IC 35-42-4-4**
 (child exploitation);

commits promotion of child sexual trafficking, a Level 3 felony.

(b) It is not a defense to a prosecution under this section that the:

- (1) child consented to engage in prostitution or juvenile
 prostitution or to participate in sexual conduct; or
- (2) intended victim of the offense is a law enforcement officer.

(c) A person who knowingly or intentionally recruits, entices,
 harbors, or transports a child less than sixteen (16) years of age with
 the intent of inducing or causing the child to participate in sexual
 conduct commits promotion of sexual trafficking of a younger child, a
 Level 3 felony. It is a defense to a prosecution under this subsection if:

- (1) the child is at least fourteen (14) years of age but less than
 sixteen (16) years of age and the person is less than eighteen (18)
 years of age; or
- (2) all the following apply:

(A) The person is not more than four (4) years older than the
 victim.

(B) The relationship between the person and the victim was a
 dating relationship or an ongoing personal relationship. The
 term "ongoing personal relationship" does not include a family
 relationship.

(C) The crime:

- (i) was not committed by a person who is at least twenty-one
 (21) years of age;
- (ii) was not committed by using or threatening the use of
 deadly force;
- (iii) was not committed while armed with a deadly weapon;
- (iv) did not result in serious bodily injury;
- (v) was not facilitated by furnishing the victim, without the
 victim's knowledge, with a drug (as defined in
 IC 16-42-19-2(1)) or a controlled substance (as defined in
 IC 35-48-1.1-7) or knowing that the victim was furnished
 with the drug or controlled substance without the victim's



knowledge; and

(vi) was not committed by a person having a position of authority or substantial influence over the victim.

(D) The person has not committed another sex offense (as defined in IC 11-8-8-5.2), including a delinquent act that would be a sex offense if committed by an adult, against any other person.

(E) The person is not promoting prostitution (as defined in IC 35-45-4-4) with respect to the victim even though the person has not been charged with or convicted of the offense.

SECTION 22. IC 35-42-4-4, AS AMENDED BY P.L.218-2025, SECTION 17, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. (a) The following definitions apply throughout this section:

(1) ~~"Disseminate"~~ means to transfer possession for free or for a consideration.

(2) (1) "Image" means the following: **any visual representation.**

(A) A picture.

(B) A drawing.

(C) A photograph.

(D) A negative image.

(E) An undeveloped film.

(F) A motion picture.

(G) A videotape.

(H) A digitized image.

(I) A computer generated image.

(J) Any pictorial representation.

(3) "Matter" has the same meaning as in IC 35-49-1-3.

(4) "Performance" has the same meaning as in IC 35-49-1-7.

(5) (2) "Sexual conduct" means:

(A) sexual intercourse;

(B) other sexual conduct (as defined in IC 35-31.5-2-221.5);

(C) exhibition of the:

(i) uncovered genitals; or

(ii) female breast with less than a fully opaque covering of any part of the nipple;

intended to satisfy or arouse the sexual desires of any person;

(D) sadomasochistic abuse;

(E) sexual intercourse or other sexual conduct (as defined in IC 35-31.5-2-221.5) with an animal; or

(F) any fondling or touching of a child by another person or of another person by a child intended to arouse or satisfy the



sexual desires of either the child or the other person.

(b) A person who:

(1) knowingly or intentionally manages; produces; sponsors; presents; exhibits; photographs; films; videotapes; or creates a digitized image of any performance or incident that includes sexual conduct by a child under eighteen (18) years of age;

(2) knowingly or intentionally disseminates; exhibits to another person; offers to disseminate or exhibit to another person; or sends or brings into Indiana for dissemination or exhibition matter that depicts or describes sexual conduct by a child under eighteen (18) years of age;

(3) knowingly or intentionally makes available to another person a computer; knowing that the computer's fixed drive or peripheral device contains matter that depicts or describes sexual conduct by a child less than eighteen (18) years of age;

(4) with the intent to satisfy or arouse the sexual desires of any person:

(A) knowingly or intentionally:

(i) manages;

(ii) produces;

(iii) sponsors;

(iv) presents;

(v) exhibits;

(vi) photographs;

(vii) films;

(viii) videotapes; or

(ix) creates a digitized image of;

any performance or incident that includes the uncovered genitals of a child less than eighteen (18) years of age or the exhibition of the female breast with less than a fully opaque covering of any part of the nipple by a child less than eighteen (18) years of age;

(B) knowingly or intentionally:

(i) disseminates to another person;

(ii) exhibits to another person;

(iii) offers to disseminate or exhibit to another person; or

(iv) sends or brings into Indiana for dissemination or exhibition;

matter that depicts the uncovered genitals of a child less than eighteen (18) years of age or the exhibition of the female breast with less than a fully opaque covering of any part of the nipple by a child less than eighteen (18) years of age; or



(C) makes available to another person a computer, knowing that the computer's fixed drive or peripheral device contains matter that depicts the uncovered genitals of a child less than eighteen (18) years of age or the exhibition of the female breast with less than a fully opaque covering of any part of the nipple by a child less than eighteen (18) years of age; or

(5) knowingly or intentionally produces, disseminates, or possesses with intent to disseminate an image that depicts or describes sexual conduct:

(A) by a child who the person knows is less than eighteen (18) years of age;

(B) by a child less than eighteen (18) years of age; or by a person who appears to be a child less than eighteen (18) years of age; if the image is obscene (as described in IC 35-49-2-1); or

(C) that is simulated sexual conduct involving a representation that appears to be a child less than eighteen (18) years of age; if the representation of the image is obscene (as described in IC 35-49-2-1);

(1) induces, causes, or coerces a child less than eighteen (18) years of age to engage in sexual conduct with the intent to produce or transmit an image of the sexual conduct;

(2) induces, causes, or coerces a child less than eighteen (18) years of age to assist another person in engaging in sexual conduct, with the intent of aiding any person in the production or transmission of an image of the sexual conduct;

(3) being the parent, guardian, or custodian of a child less than eighteen (18) years of age, permits the child to:

(A) engage in sexual conduct; or

(B) assist another person in engaging in sexual conduct; with the intent to aid another person in the production or transmission of an image of the sexual conduct;

(4) solicits a child less than eighteen (18) years of age, or who the person believes to be a child less than eighteen (18) years of age, to:

(A) engage in sexual conduct; or

(B) assist another person in engaging in sexual conduct; with the intent to produce or transmit an image of the sexual conduct; or

(5) produces or creates an image containing sexual conduct by a child less than eighteen (18) years of age, or who appears to be a child less than eighteen (18) years of age;



commits child exploitation, a ~~Level 5 felony~~; **Level 4 felony, except as otherwise provided in this section.** It is not a required element of an offense under subdivision (5)(C) that the child depicted actually exists.

(c) However, the offense of child exploitation described in subsection (b) is a Level 4 felony if:

(1) the sexual conduct, matter, performance, or incident depicts or describes a child less than eighteen (18) years of age who:

(A) engages in bestiality (as described in IC 35-46-3-14);

(B) is mentally disabled or deficient;

(C) participates in the sexual conduct, matter, performance, or incident by use of force or the threat of force;

(D) physically or verbally resists participating in the sexual conduct, matter, performance, or incident;

(E) receives a bodily injury while participating in the sexual conduct, matter, performance, or incident; or

(F) is less than twelve (12) years of age; or

(2) the child less than eighteen (18) years of age:

(A) engages in bestiality (as described in IC 35-46-3-14);

(B) is mentally disabled or deficient;

(C) participates in the sexual conduct, matter, performance, or incident by use of force or the threat of force;

(D) physically or verbally resists participating in the sexual conduct, matter, performance, or incident;

(E) receives a bodily injury while participating in the sexual conduct, matter, performance, or incident; or

(F) is less than twelve (12) years of age.

(c) The offense described in subsection (b) is a Level 3 felony if:

(1) the person has a prior unrelated conviction for a sex offense (as defined in IC 11-8-8-5.2); or

(2) the conduct depicted in the image involves:

(A) bestiality (as described in IC 35-46-3-14);

(B) a child less than twelve (12) years of age, or who appears to be a child less than twelve (12) years of age;

(C) violence or a depiction of violence against a child, including sado-masochistic abuse (as defined in IC 35-49-1-8);

(D) child molesting;

(E) pecuniary gain by the person; or

(F) distributing the visual depiction to a child less than eighteen (18) years of age with the intent of inducing, causing, or coercing the child to commit a criminal offense.

(d) The offense described in subsection (b) is a Level 2 felony if



1 the offense is committed by force or threat of force.

2 (d) A person who, with intent to view the image; knowingly or
3 intentionally possesses or accesses an image that depicts or describes
4 sexual conduct:

5 (1) by a child who the person knows is less than eighteen (18)
6 years of age;

7 (2) by a child less than eighteen (18) years of age; or by a person
8 who appears to be a child less than eighteen (18) years of age; if
9 the representation of the image is obscene (as described in
10 IC 35-49-2-1); or

11 (3) that is simulated sexual conduct involving a representation
12 that appears to be a child less than eighteen (18) years of age; if
13 the representation of the image is obscene (as described in
14 IC 35-49-2-1);

15 commits possession of child sex abuse material; a Level 6 felony. It is
16 not a required element of an offense under subdivision (3) that the
17 child depicted actually exists:

18 (e) However, the offense of possession of child sex abuse material
19 described in subsection (d) is a Level 5 felony if:

20 (1) the sexual conduct, matter, performance; or incident depicts
21 or describes a child who the person knows is less than eighteen
22 (18) years of age; or who appears to be less than eighteen (18)
23 years of age; who:

24 (A) engages in bestiality (as described in IC 35-46-3-14);

25 (B) is mentally disabled or deficient;

26 (C) participates in the sexual conduct, matter, performance; or
27 incident by use of force or the threat of force;

28 (D) physically or verbally resists participating in the sexual
29 conduct, matter, performance; or incident;

30 (E) receives a bodily injury while participating in the sexual
31 conduct, matter, performance; or incident; or

32 (F) is less than twelve (12) years of age; or

33 (2) the child less than eighteen (18) years of age:

34 (A) engages in bestiality (as described in IC 35-46-3-14);

35 (B) is mentally disabled or deficient;

36 (C) participates in the sexual conduct, matter, performance; or
37 incident by use of force or the threat of force;

38 (D) physically or verbally resists participating in the sexual
39 conduct, matter, performance; or incident;

40 (E) receives a bodily injury while participating in the sexual
41 conduct, matter, performance; or incident; or

42 (F) is less than twelve (12) years of age.



1 ~~(f)~~ **(e)** Subsections ~~(b)~~, ~~(c)~~, ~~(d)~~, and ~~(e)~~ **do** This section does not
 2 apply to a bona fide school, museum, or public library that qualifies for
 3 certain property tax exemptions under IC 6-1.1-10, or to an employee
 4 of such a school, museum, or public library acting within the scope of
 5 the employee's employment when the possession of the listed materials
 6 is for legitimate scientific or educational purposes.

7 ~~(g)~~ **(f)** It is a defense to a prosecution under this section that:

8 (1) the person is a school employee, a department of child
 9 services employee, or an attorney acting in the attorney's capacity
 10 as legal counsel for a client; and

11 (2) the acts constituting the elements of the offense were
 12 performed solely within the scope of the person's employment as
 13 a school employee, a department of child services employee, or
 14 an attorney acting in the attorney's capacity as legal counsel for a
 15 client.

16 ~~(h)~~ **(g)** Except as provided in subsection ~~(i)~~, **(h)**, it is a defense to a
 17 prosecution under subsection ~~(b)~~, ~~(c)~~, ~~(d)~~, or ~~(e)~~ **this section** if all of the
 18 following apply:

19 (1) A cellular telephone, another wireless or cellular
 20 communications device, or a social networking website was used
 21 to possess, produce, or ~~disseminate~~ **distribute** the image.

22 (2) The defendant is not more than four (4) years older or younger
 23 than the person who is depicted in the image or who received the
 24 image.

25 (3) The relationship between the defendant and the person who
 26 received the image or who is depicted in the image was a dating
 27 relationship or an ongoing personal relationship. For purposes of
 28 this subdivision, the term "ongoing personal relationship" does
 29 not include a family relationship.

30 (4) The crime was committed by a person less than twenty-two
 31 (22) years of age.

32 (5) The person receiving the image or who is depicted in the
 33 image acquiesced in the defendant's conduct.

34 ~~(i)~~ **(h)** The defense to a prosecution described in subsection ~~(h)~~ **(g)**
 35 does not apply if:

36 (1) the person who receives the image ~~disseminates~~ **distributes**
 37 it to a person other than the person:

38 (A) who sent the image; or

39 (B) who is depicted in the image;

40 (2) the image is of a person other than the person who sent the
 41 image or received the image; or

42 (3) the ~~dissemination~~ **distribution** of the image violates:



- 1 (A) a protective order to prevent domestic or family violence
- 2 or harassment issued under IC 34-26-5 (or, if the order
- 3 involved a family or household member, under IC 34-26-2 or
- 4 IC 34-4-5.1-5 before their repeal);
- 5 (B) an ex parte protective order issued under IC 34-26-5 (or,
- 6 if the order involved a family or household member, an
- 7 emergency order issued under IC 34-26-2 or IC 34-4-5.1
- 8 before their repeal);
- 9 (C) a workplace violence restraining order issued under
- 10 IC 34-26-6;
- 11 (D) a no contact order in a dispositional decree issued under
- 12 IC 31-34-20-1, IC 31-37-19-1, or IC 31-37-5-6 (or
- 13 IC 31-6-4-15.4 or IC 31-6-4-15.9 before their repeal) or an
- 14 order issued under IC 31-32-13 (or IC 31-6-7-14 before its
- 15 repeal) that orders the person to refrain from direct or indirect
- 16 contact with a child in need of services or a delinquent child;
- 17 (E) a no contact order issued as a condition of pretrial release,
- 18 including release on bail or personal recognizance, or pretrial
- 19 diversion, and including a no contact order issued under
- 20 IC 35-33-8-3.6;
- 21 (F) a no contact order issued as a condition of probation;
- 22 (G) a protective order to prevent domestic or family violence
- 23 issued under IC 31-15-5 (or IC 31-16-5 or IC 31-1-11.5-8.2
- 24 before their repeal);
- 25 (H) a protective order to prevent domestic or family violence
- 26 issued under IC 31-14-16-1 in a paternity action;
- 27 (I) a no contact order issued under IC 31-34-25 in a child in
- 28 need of services proceeding or under IC 31-37-25 in a juvenile
- 29 delinquency proceeding;
- 30 (J) an order issued in another state that is substantially similar
- 31 to an order described in clauses (A) through (I);
- 32 (K) an order that is substantially similar to an order described
- 33 in clauses (A) through (I) and is issued by an Indian:
- 34 (i) tribe;
- 35 (ii) band;
- 36 (iii) pueblo;
- 37 (iv) nation; or
- 38 (v) organized group or community, including an Alaska
- 39 Native village or regional or village corporation as defined
- 40 in or established under the Alaska Native Claims Settlement
- 41 Act (43 U.S.C. 1601 et seq.);
- 42 that is recognized as eligible for the special programs and



services provided by the United States to Indians because of their special status as Indians;

(L) an order issued under IC 35-33-8-3.2; or

(M) an order issued under IC 35-38-1-30.

~~(j)~~ (i) It is a defense to a prosecution under this section that:

(1) the person was less than eighteen (18) years of age at the time the alleged offense was committed; and

(2) the circumstances described in IC 35-45-4-6(a)(2) through IC 35-45-4-6(a)(4) apply.

~~(k)~~ (j) A person is entitled to present the defense described in subsection ~~(j)~~ (i) in a pretrial hearing. If a person proves by a preponderance of the evidence in a pretrial hearing that the defense described in subsection ~~(j)~~ (i) applies, the court shall dismiss the charges under this section with prejudice.

SECTION 23. IC 35-42-4-4.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 4.5. (a) The following definitions apply throughout this section:**

(1) "Image" has the meaning set forth in section 4 of this chapter.

(2) "Sexual conduct" has the meaning set forth in section 4 of this chapter.

(b) A person who, with intent to view the image, knowingly or intentionally possesses or accesses an image that depicts or describes sexual conduct:

(1) by a child who the person knows is less than eighteen (18) years of age;

(2) by a child less than eighteen (18) years of age, or by a person who appears to be a child less than eighteen (18) years of age, if the representation of the image is obscene (as described in IC 35-49-2-1); or

(3) that is simulated sexual conduct involving a representation that appears to be a child less than eighteen (18) years of age, if the representation of the image is obscene (as described in IC 35-49-2-1);

commits possession of child sex abuse material, a Level 6 felony, except as otherwise provided in this section. It is not a required element of an offense under subdivision (3) that the child depicted actually exists.

(c) The offense described in subsection (b) is a Level 4 felony if:

(1) the person has a prior unrelated conviction for a sex offense (as defined in IC 11-8-8-5.2); or



(2) the conduct depicted in the image involves:

(A) bestiality (as described in IC 35-46-3-14);

(B) a child less than twelve (12) years of age, or who appears to be a child less than twelve (12) years of age;

(C) violence or a depiction of violence against a child, including sado-masochistic abuse (as defined in IC 35-49-1-8); or

(D) child molesting.

(d) A person who knowingly or intentionally distributes an image that depicts or describes sexual conduct:

(1) by a child who the person knows is less than eighteen (18) years of age;

(2) by a child less than eighteen (18) years of age, or by a person who appears to be a child less than eighteen (18) years of age, if the image is obscene (as described in IC 35-49-2-1); or

(3) that is simulated sexual conduct involving a representation that appears to be a child less than eighteen (18) years of age, if the representation of the image is obscene (as described in IC 35-49-2-1);

commits distribution of child sex abuse material, a Level 5 felony, except as otherwise provided in this section. It is not a required element of an offense under subdivision (3) that the child depicted actually exists.

(e) The offense described in subsection (d) is a Level 3 felony if:

(1) the person has a prior unrelated conviction for a sex offense (as defined in IC 11-8-8-5.2); or

(2) the conduct depicted in the image involves:

(A) bestiality (as described in IC 35-46-3-14);

(B) a child less than twelve (12) years of age, or who appears to be a child less than twelve (12) years of age;

(C) violence or a depiction of violence against a child, including sado-masochistic abuse (as defined in IC 35-49-1-8);

(D) child molesting;

(E) pecuniary gain by the person; or

(F) distributing the visual depiction to a child less than eighteen (18) years of age with the intent of inducing, causing, or coercing the child to commit a criminal offense.

(f) This section does not apply to a bona fide school, museum, or public library that qualifies for certain property tax exemptions under IC 6-1.1-10, or to an employee of such a school, museum, or



1 public library acting within the scope of the employee's
 2 employment when the possession of the listed materials is for
 3 legitimate scientific or educational purposes.

4 (g) It is a defense to a prosecution under this section that:

5 (1) the person is a school employee, a department of child
 6 services employee, or an attorney acting in the attorney's
 7 capacity as legal counsel for a client; and

8 (2) the acts constituting the elements of the offense were
 9 performed solely within the scope of the person's employment
 10 as a school employee, a department of child services
 11 employee, or an attorney acting in the attorney's capacity as
 12 legal counsel for a client.

13 (h) Except as provided in subsection (g), it is a defense to a
 14 prosecution under this section if all of the following apply:

15 (1) A cellular telephone, another wireless or cellular
 16 communications device, or a social networking website was
 17 used to possess, produce, or distribute the image.

18 (2) The defendant is not more than four (4) years older or
 19 younger than the person who is depicted in the image or who
 20 received the image.

21 (3) The relationship between the defendant and the person
 22 who received the image or who is depicted in the image was a
 23 dating relationship or an ongoing personal relationship. For
 24 purposes of this subdivision, the term "ongoing personal
 25 relationship" does not include a family relationship.

26 (4) The crime was committed by a person less than
 27 twenty-two (22) years of age.

28 (5) The person receiving the image or who is depicted in the
 29 image acquiesced in the defendant's conduct.

30 (i) The defense to a prosecution described in subsection (h) does
 31 not apply if:

32 (1) the person who receives the image distributes it to a
 33 person other than the person:

34 (A) who sent the image; or

35 (B) who is depicted in the image;

36 (2) the image is of a person other than the person who sent the
 37 image or received the image; or

38 (3) the distribution of the image violates:

39 (A) a protective order to prevent domestic or family
 40 violence or harassment issued under IC 34-26-5 (or, if the
 41 order involved a family or household member, under
 42 IC 34-26-2 or IC 34-4-5.1-5 before their repeal);



(B) an ex parte protective order issued under IC 34-26-5 (or, if the order involved a family or household member, an emergency order issued under IC 34-26-2 or IC 34-4-5.1 before their repeal);

(C) a workplace violence restraining order issued under IC 34-26-6;

(D) a no contact order in a dispositional decree issued under IC 31-34-20-1, IC 31-37-19-1, or IC 31-37-19-6 (or IC 31-6-4-15.4 or IC 31-6-4-15.9 before their repeal) or an order issued under IC 31-32-13 (or IC 31-6-7-14 before its repeal) that orders the person to refrain from direct or indirect contact with a child in need of services or a delinquent child;

(E) a no contact order issued as a condition of pretrial release, including release on bail or personal recognizance, or pretrial diversion, and including a no contact order issued under IC 35-33-8-3.6;

(F) a no contact order issued as a condition of probation;

(G) a protective order to prevent domestic or family violence issued under IC 31-15-5 (or IC 31-16-5 or IC 31-1-11.5-8.2 before their repeal);

(H) a protective order to prevent domestic or family violence issued under IC 31-14-16-1 in a paternity action;

(I) a no contact order issued under IC 31-34-25 in a child in need of services proceeding or under IC 31-37-25 in a juvenile delinquency proceeding;

(J) an order issued in another state that is substantially similar to an order described in clauses (A) through (I);

(K) an order that is substantially similar to an order described in clauses (A) through (I) and is issued by an Indian:

(i) tribe;

(ii) band;

(iii) pueblo;

(iv) nation; or

(v) organized group or community, including an Alaska Native village or regional or village corporation as defined in or established under the Alaska Native Claims Settlement Act (43 U.S.C. 1601 et seq.);

that is recognized as eligible for the special programs and services provided by the United States to Indians because of their special status as Indians;



(L) an order issued under IC 35-33-8-3.2; or

(M) an order issued under IC 35-38-1-30.

(j) It is a defense to a prosecution under this section that:

(1) the person was less than eighteen (18) years of age at the time the alleged offense was committed; and

(2) the circumstances described in IC 35-45-4-6(a)(2) through IC 35-45-4-6(a)(4) apply.

(k) A person is entitled to present the defense described in subsection (j) in a pretrial hearing. If a person proves by a preponderance of the evidence in a pretrial hearing that the defense described in subsection (j) applies, the court shall dismiss the charges under this section with prejudice.

(l) It is a defense to a prosecution under this section that the person:

(1) possessed less than three (3) images prohibited by this section; and

(2) promptly and in good faith, and without retaining or allowing any person, other than a law enforcement agency, to access a prohibited image or a copy of a prohibited image:

(A) took reasonable steps to destroy each prohibited image; or

(B) reported the matter to a law enforcement agency and afforded that agency access to each prohibited image.

SECTION 24. IC 35-42-4-11, AS AMENDED BY P.L.142-2020, SECTION 66, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 11. (a) As used in this section, and except as provided in subsection (d), "offender against children" means a person required to register as a sex or violent offender under IC 11-8-8 who has been:

(1) found to be a sexually violent predator under IC 35-38-1-7.5; or

(2) convicted of one (1) or more of the following offenses:

(A) Child molesting (IC 35-42-4-3).

(B) Child exploitation (~~IC 35-42-4-4(b) or IC 35-42-4-4(c)~~). **(IC 35-42-4-4).**

(C) Child solicitation (IC 35-42-4-6).

(D) Child seduction (IC 35-42-4-7).

(E) Kidnapping (IC 35-42-3-2), if the victim is less than eighteen (18) years of age, and the person is not the child's parent or guardian.

A person is an offender against children by operation of law if the person meets the conditions described in subdivision (1) or (2) at any



1 time.

2 (b) As used in this section, "reside" means to spend more than three
3 (3) nights in:

4 (1) a residence; or

5 (2) if the person does not reside in a residence, a particular
6 location;

7 in any thirty (30) day period.

8 (c) An offender against children who knowingly or intentionally:

9 (1) resides within one thousand (1,000) feet of:

10 (A) school property, not including property of an institution
11 providing post-secondary education;

12 (B) a youth program center;

13 (C) a public park; or

14 (D) a day care center licensed under IC 12-17.2;

15 (2) establishes a residence within one (1) mile of the residence of
16 the victim of the offender's sex offense; or

17 (3) resides in a residence where a child care provider (as defined
18 by IC 31-33-26-1) provides child care services;

19 commits a sex offender residency offense, a Level 6 felony.

20 (d) This subsection does not apply to an offender against children
21 who has two (2) or more unrelated convictions for an offense described
22 in subsection (a). A person who is an offender against children may
23 petition the court to consider whether the person should no longer be
24 considered an offender against children. The person may file a petition
25 under this subsection not earlier than ten (10) years after the person is
26 released from incarceration or parole, whichever occurs last (or, if the
27 person is not incarcerated, not earlier than ten (10) years after the
28 person is released from probation). A person may file a petition under
29 this subsection not more than one (1) time per year. A court may
30 dismiss a petition filed under this subsection or conduct a hearing to
31 determine if the person should no longer be considered an offender
32 against children. If the court conducts a hearing, the court shall appoint
33 two (2) psychologists or psychiatrists who have expertise in criminal
34 behavioral disorders to evaluate the person and testify at the hearing.
35 After conducting the hearing and considering the testimony of the two
36 (2) psychologists or psychiatrists, the court shall determine whether the
37 person should no longer be considered an offender against children. If
38 a court finds that the person should no longer be considered an offender
39 against children, the court shall send notice to the department of
40 correction that the person is no longer considered an offender against
41 children.

42 SECTION 25. IC 35-42-4-14, AS AMENDED BY P.L.218-2025,



SECTION 18, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 14. (a) As used in this section, "serious sex offender" means a person required to register as a sex offender under IC 11-8-8 who is:

(1) found to be a sexually violent predator under IC 35-38-1-7.5; or

(2) convicted of one (1) or more of the following offenses:

(A) Child molesting (IC 35-42-4-3).

(B) Child exploitation (~~IC 35-42-4-4(b) or IC 35-42-4-4(c)~~). **(IC 35-42-4-4).**

(C) Possession of child sex abuse material (IC 35-42-4-4(d) or IC 35-42-4-4(e)) **(before July 1, 2026), or a child sex abuse material offense under IC 35-42-4-4.5 (after June 30, 2026).**

(D) Vicarious sexual gratification (IC 35-42-4-5(a) and IC 35-42-4-5(b)).

(E) Performing sexual conduct in the presence of a minor (IC 35-42-4-5(c)).

(F) Child solicitation (IC 35-42-4-6).

(G) Child seduction (IC 35-42-4-7).

(H) Sexual misconduct with a minor (IC 35-42-4-9).

(b) A serious sex offender who knowingly or intentionally enters school property commits unlawful entry by a serious sex offender, a Level 6 felony.

(c) It is a defense to a prosecution under subsection (b) that:

(1) a religious institution or house of worship is located on the school property; and

(2) the person:

(A) enters the school property or other entity described in IC 35-31.5-2-285(1)(A) through IC 35-31.5-2-285(1)(D) when classes, extracurricular activities, or any other school activities are not being held:

(i) for the sole purpose of attending worship services or receiving religious instruction; and

(ii) not earlier than thirty (30) minutes before the beginning of the worship services or religious instruction; and

(B) leaves the school property not later than thirty (30) minutes after the conclusion of the worship services or religious instruction.

SECTION 26. IC 35-49-3-3, AS AMENDED BY P.L.218-2025, SECTION 22, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. (a) Except as provided in subsection (b) and



section 4 of this chapter, a person who knowingly or intentionally:

- (1) disseminates matter to minors that is harmful to minors (as described in IC 35-49-2);
- (2) displays matter that is harmful to minors in an area to which minors have visual, auditory, or physical access, unless each minor is accompanied by the minor's parent or guardian;
- (3) sells, rents, or displays for sale or rent to any person matter that is harmful to minors within five hundred (500) feet of the nearest property line of a school or church;
- (4) engages in or conducts a performance before minors that is harmful to minors;
- (5) engages in or conducts a performance that is harmful to minors in an area to which minors have visual, auditory, or physical access, unless each minor is accompanied by the minor's parent or guardian;
- (6) misrepresents the minor's age for the purpose of obtaining admission to an area from which minors are restricted because of the display of matter or a performance that is harmful to minors; or
- (7) misrepresents that the person is a parent or guardian of a minor for the purpose of obtaining admission of the minor to an area where minors are being restricted because of display of matter or performance that is harmful to minors;

commits a Level 6 felony.

(b) This section does not apply if a person disseminates, displays, or makes available the matter described in subsection (a) through the Internet, computer electronic transfer, or a computer network unless:

- (1) the matter is obscene under IC 35-49-2-1;
- (2) the matter is child sex abuse material under ~~IC 35-42-4-4~~; **IC 35-42-4-4.5**; or
- (3) the person distributes the matter to a child less than eighteen (18) years of age believing or intending that the recipient is a child less than eighteen (18) years of age.

SECTION 27. IC 35-50-1-2, AS AMENDED BY P.L.218-2025, SECTION 23, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. (a) As used in this section, "crime of violence" means the following:

- (1) Murder (IC 35-42-1-1).
- (2) Attempted murder (IC 35-41-5-1).
- (3) Voluntary manslaughter (IC 35-42-1-3).
- (4) Involuntary manslaughter (IC 35-42-1-4).
- (5) Reckless homicide (IC 35-42-1-5).



- 1 (6) Battery (IC 35-42-2-1) as a:
- 2 (A) Level 2 felony;
- 3 (B) Level 3 felony;
- 4 (C) Level 4 felony; or
- 5 (D) Level 5 felony.
- 6 (7) Domestic battery (IC 35-42-2-1.3) as a:
- 7 (A) Level 2 felony;
- 8 (B) Level 3 felony;
- 9 (C) Level 4 felony; or
- 10 (D) Level 5 felony.
- 11 (8) Aggravated battery (IC 35-42-2-1.5).
- 12 (9) Kidnapping (IC 35-42-3-2).
- 13 (10) Rape (IC 35-42-4-1).
- 14 (11) Criminal deviate conduct (IC 35-42-4-2) (before its repeal).
- 15 (12) Child molesting (IC 35-42-4-3).
- 16 (13) Sexual misconduct with a minor as a Level 1 felony under
- 17 IC 35-42-4-9(a)(2) or a Level 2 felony under IC 35-42-4-9(b)(2).
- 18 (14) Robbery as a Level 2 felony or a Level 3 felony
- 19 (IC 35-42-5-1).
- 20 (15) Burglary as a Level 1 felony, Level 2 felony, Level 3 felony,
- 21 or Level 4 felony (IC 35-43-2-1).
- 22 (16) Operating a vehicle while intoxicated causing death or
- 23 catastrophic injury (IC 9-30-5-5).
- 24 (17) Operating a vehicle while intoxicated causing serious bodily
- 25 injury to another person (IC 9-30-5-4).
- 26 (18) Child exploitation (**IC 35-42-4-4**), as a Level 5 felony under
- 27 ~~IC 35-42-4-4(b) or a Level 4 felony under IC 35-42-4-4(c)~~.
- 28 (19) Resisting law enforcement as a felony (IC 35-44.1-3-1).
- 29 (20) Unlawful possession of a firearm by a serious violent felon
- 30 (IC 35-47-4-5).
- 31 (21) Strangulation (IC 35-42-2-9) as a Level 5 felony.
- 32 **(22) A child sexual abuse material offense (IC 35-42-4-4.5).**
- 33 (b) As used in this section, "episode of criminal conduct" means
- 34 offenses or a connected series of offenses that are closely related in
- 35 time, place, and circumstance.
- 36 (c) Except as provided in subsection (e) or (f) the court shall
- 37 determine whether terms of imprisonment shall be served concurrently
- 38 or consecutively. The court may consider the:
- 39 (1) aggravating circumstances in IC 35-38-1-7.1(a); and
- 40 (2) mitigating circumstances in IC 35-38-1-7.1(b);
- 41 in making a determination under this subsection. The court may order
- 42 terms of imprisonment to be served consecutively even if the sentences



are not imposed at the same time. However, except for crimes of violence, the total of the consecutive terms of imprisonment, exclusive of terms of imprisonment under IC 35-50-2-8 and IC 35-50-2-10 (before its repeal) to which the defendant is sentenced for felony or misdemeanor convictions arising out of an episode of criminal conduct shall not exceed the period described in subsection (d).

(d) Except as provided in subsection (c), the total of the consecutive terms of imprisonment to which the defendant is sentenced for convictions arising out of an episode of criminal conduct may not exceed the following:

(1) If the most serious crime for which the defendant is sentenced is a Class C misdemeanor, the total of the consecutive terms of imprisonment may not exceed one (1) year.

(2) If the most serious crime for which the defendant is sentenced is a Class B misdemeanor, the total of the consecutive terms of imprisonment may not exceed two (2) years.

(3) If the most serious crime for which the defendant is sentenced is a Class A misdemeanor, the total of the consecutive terms of imprisonment may not exceed three (3) years.

(4) If the most serious crime for which the defendant is sentenced is a Level 6 felony, the total of the consecutive terms of imprisonment may not exceed four (4) years.

(5) If the most serious crime for which the defendant is sentenced is a Level 5 felony, the total of the consecutive terms of imprisonment may not exceed seven (7) years.

(6) If the most serious crime for which the defendant is sentenced is a Level 4 felony, the total of the consecutive terms of imprisonment may not exceed fifteen (15) years.

(7) If the most serious crime for which the defendant is sentenced is a Level 3 felony, the total of the consecutive terms of imprisonment may not exceed twenty (20) years.

(8) If the most serious crime for which the defendant is sentenced is a Level 2 felony, the total of the consecutive terms of imprisonment may not exceed thirty-two (32) years.

(9) If the most serious crime for which the defendant is sentenced is a Level 1 felony, the total of the consecutive terms of imprisonment may not exceed forty-two (42) years.

(e) If, after being arrested for one (1) crime, a person commits another crime:

(1) before the date the person is discharged from probation, parole, or a term of imprisonment imposed for the first crime; or

(2) while the person is released:



1 (A) upon the person's own recognizance; or
 2 (B) on bond;
 3 the terms of imprisonment for the crimes shall be served consecutively,
 4 regardless of the order in which the crimes are tried and sentences are
 5 imposed.

6 (f) If the factfinder determines under IC 35-50-2-11 that a person
 7 used a firearm in the commission of the offense for which the person
 8 was convicted, the term of imprisonment for the underlying offense and
 9 the additional term of imprisonment imposed under IC 35-50-2-11
 10 must be served consecutively.

11 SECTION 28. IC 35-50-2-7, AS AMENDED BY P.L.218-2025,
 12 SECTION 24, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 13 JULY 1, 2026]: Sec. 7. (a) A person who commits a Class D felony (for
 14 a crime committed before July 1, 2014) shall be imprisoned for a fixed
 15 term of between six (6) months and three (3) years, with the advisory
 16 sentence being one and one-half (1 1/2) years. In addition, the person
 17 may be fined not more than ten thousand dollars (\$10,000).

18 (b) A person who commits a Level 6 felony (for a crime committed
 19 after June 30, 2014) shall be imprisoned for a fixed term of between six
 20 (6) months and two and one-half (2 1/2) years, with the advisory
 21 sentence being one (1) year. In addition, the person may be fined not
 22 more than ten thousand dollars (\$10,000).

23 (c) Notwithstanding subsections (a) and (b), if a person has
 24 committed a Class D felony (for a crime committed before July 1,
 25 2014) or a Level 6 felony (for a crime committed after June 30, 2014),
 26 the court may enter judgment of conviction of a Class A misdemeanor
 27 and sentence accordingly. However, the court shall enter a judgment of
 28 conviction of a Class D felony (for a crime committed before July 1,
 29 2014) or a Level 6 felony (for a crime committed after June 30, 2014)
 30 if:

- 31 (1) the court finds that:
- 32 (A) the person has committed a prior, unrelated felony for
 - 33 which judgment was entered as a conviction of a Class A
 - 34 misdemeanor; and
 - 35 (B) the prior felony was committed less than three (3) years
 - 36 before the second felony was committed;
 - 37 (2) the offense is domestic battery as a Class D felony (for a crime
 - 38 committed before July 1, 2014) or a Level 6 felony (for a crime
 - 39 committed after June 30, 2014) under IC 35-42-2-1.3; or
 - 40 (3) the offense is possession of child sex abuse material
 - 41 (IC 35-42-4-4(d)) **(before July 1, 2026) or a child sex abuse**
 - 42 **material offense under IC 35-42-4-4.5 (after June 30, 2026).**



1 The court shall enter in the record, in detail, the reason for its action
 2 whenever it exercises the power to enter judgment of conviction of a
 3 Class A misdemeanor granted in this subsection.

4 (d) Notwithstanding subsections (a) and (b), the sentencing court
 5 may convert a Class D felony conviction (for a crime committed before
 6 July 1, 2014) or a Level 6 felony conviction (for a crime committed
 7 after June 30, 2014) to a Class A misdemeanor conviction if, after
 8 receiving a verified petition as described in subsection (e) and after
 9 conducting a hearing of which the prosecuting attorney has been
 10 notified, the court makes the following findings:

11 (1) The person is not a sex or violent offender (as defined in
 12 IC 11-8-8-5).

13 (2) The person was not convicted of a Class D felony (for a crime
 14 committed before July 1, 2014) or a Level 6 felony (for a crime
 15 committed after June 30, 2014) that resulted in bodily injury to
 16 another person.

17 (3) The person has not been convicted of perjury under
 18 IC 35-44.1-2-1 (or IC 35-44-2-1 before its repeal) or official
 19 misconduct under IC 35-44.1-1-1 (or IC 35-44-1-2 before its
 20 repeal).

21 (4) The person has not been convicted of domestic battery as a
 22 Class D felony (for a crime committed before July 1, 2014) or a
 23 Level 6 felony (for a crime committed after June 30, 2014) under
 24 IC 35-42-2-1.3 in the fifteen (15) year period immediately
 25 preceding the commission of the current offense.

26 (5) At least three (3) years have passed since the person:

27 (A) completed the person's sentence; and

28 (B) satisfied any other obligation imposed on the person as
 29 part of the sentence;

30 for the Class D or Level 6 felony.

31 (6) The person has not been convicted of a felony since the
 32 person:

33 (A) completed the person's sentence; and

34 (B) satisfied any other obligation imposed on the person as
 35 part of the sentence;

36 for the Class D or Level 6 felony.

37 (7) No criminal charges are pending against the person.

38 (e) A petition filed under subsection (d) or (f) must be verified and
 39 set forth:

40 (1) the crime the person has been convicted of;

41 (2) the date of the conviction;

42 (3) the date the person completed the person's sentence;



- (4) any obligations imposed on the person as part of the sentence;
- (5) the date the obligations were satisfied; and
- (6) a verified statement that there are no criminal charges pending against the person.

(f) If a person whose Class D or Level 6 felony conviction has been converted to a Class A misdemeanor conviction under subsection (d) is convicted of a felony not later than five (5) years after the conversion under subsection (d), a prosecuting attorney may petition a court to convert the person's Class A misdemeanor conviction back to a Class D felony conviction (for a crime committed before July 1, 2014) or a Level 6 felony conviction (for a crime committed after June 30, 2014).

SECTION 29. IC 35-50-6-3.3, AS AMENDED BY THE TECHNICAL CORRECTIONS BILL OF THE 2026 GENERAL ASSEMBLY, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3.3. (a) In addition to any educational credit a person earns under subsection (b), or good time credit a person earns under section 3 or 3.1 of this chapter, a person earns educational credit if the person:

- (1) is in credit Class I, Class A, or Class B;
- (2) has demonstrated a pattern consistent with rehabilitation; and
- (3) successfully completes requirements to obtain one (1) of the following:

(A) A general educational development (GED) diploma under IC 20-20-6 (before its repeal) or IC 22-4.1-18, if the person has not previously obtained a high school diploma.

(B) Except as provided in subsection (o), a high school diploma, if the person has not previously obtained a general educational development (GED) diploma.

(C) An associate degree from an approved postsecondary educational institution (as defined under IC 21-7-13-6(a)) earned during the person's incarceration.

(D) A ~~bachelor~~ **bachelor's** degree from an approved postsecondary educational institution (as defined under IC 21-7-13-6(a)) earned during the person's incarceration.

(b) In addition to any educational credit that a person earns under subsection (a), or good time credit a person earns under section 3 or 3.1 of this chapter, a person may earn educational credit if, while confined by the department of correction, the person:

- (1) is in credit Class I, Class A, or Class B;
- (2) demonstrates a pattern consistent with rehabilitation; and
- (3) successfully completes requirements for at least one (1) of the following:



- 1 (A) To obtain a certificate of completion of a career and
- 2 technical or vocational education program approved by the
- 3 department of correction.
- 4 (B) To obtain a certificate of completion of a substance abuse
- 5 program approved by the department of correction.
- 6 (C) To obtain a certificate of completion of a literacy and basic
- 7 life skills program approved by the department of correction.
- 8 (D) To obtain a certificate of completion of a reformatory
- 9 program approved by the department of correction.
- 10 (E) An individualized case management plan approved by the
- 11 department of correction.
- 12 (c) The department of correction shall establish admissions criteria
- 13 and other requirements for programs available for earning educational
- 14 credit under subsection (b). A person may not earn educational credit
- 15 under this section for the same program of study. The department of
- 16 correction, in consultation with the department of workforce
- 17 development, shall approve a program only if the program is likely to
- 18 lead to an employable occupation.
- 19 (d) The amount of educational credit a person may earn under this
- 20 section is the following:
- 21 (1) Six (6) months for completion of a state of Indiana general
- 22 educational development (GED) diploma under IC 20-20-6
- 23 (before its repeal) or IC 22-4.1-18.
- 24 (2) One (1) year for graduation from high school.
- 25 (3) Not more than one (1) year for completion of an associate
- 26 degree.
- 27 (4) Not more than two (2) years for completion of a ~~bachelor~~
- 28 **bachelor's** degree.
- 29 (5) Not more than a total of one (1) year, as determined by the
- 30 department of correction, for the completion of one (1) or more
- 31 career and technical or vocational education programs approved
- 32 by the department of correction.
- 33 (6) Not more than a total of six (6) months, as determined by the
- 34 department of correction, for the completion of one (1) or more
- 35 substance abuse programs approved by the department of
- 36 correction.
- 37 (7) Not more than a total of six (6) months, as determined by the
- 38 department of correction, for the completion of one (1) or more
- 39 literacy and basic life skills programs approved by the department
- 40 of correction.
- 41 (8) Not more than a total of six (6) months, as determined by the
- 42 department of correction, for completion of one (1) or more



reformatory programs approved by the department of correction. However, a person who is serving a sentence for an offense listed under IC 11-8-8-4.5 may not earn educational credit under this subdivision.

(9) An amount determined by the department of correction under a policy adopted by the department of correction concerning the individualized case management plan, not to exceed the maximum amount described in subsection (j).

However, a person who does not have a substance abuse problem that qualifies the person to earn educational credit in a substance abuse program may earn not more than a total of twelve (12) months of educational credit, as determined by the department of correction, for the completion of one (1) or more career and technical or vocational education programs approved by the department of correction. If a person earns more than six (6) months of educational credit for the completion of one (1) or more career and technical or vocational education programs, the person is ineligible to earn educational credit for the completion of one (1) or more substance abuse programs.

(e) Educational credit earned under this section must be directly proportional to the time served and course work completed while incarcerated. The department of correction shall adopt rules under IC 4-22-2 necessary to implement this subsection.

(f) Educational credit earned by a person under this section is subtracted from the release date that would otherwise apply to the person by the sentencing court after subtracting all other credit time earned by the person.

(g) A person does not earn educational credit under subsection (a) unless the person completes at least a portion of the degree requirements after June 30, 1993.

(h) A person does not earn educational credit under subsection (b) unless the person completes at least a portion of the program requirements after June 30, 1999.

(i) Educational credit earned by a person under subsection (a) for a diploma or degree completed before July 1, 1999, shall be subtracted from:

(1) the release date that would otherwise apply to the person after subtracting all other credit time earned by the person, if the person has not been convicted of an offense described in subdivision (2); or

(2) the period of imprisonment imposed on the person by the sentencing court, if the person has been convicted of one (1) of the following crimes:



- 1 (A) Rape (IC 35-42-4-1).
- 2 (B) Criminal deviate conduct (IC 35-42-4-2) (before its
- 3 repeal).
- 4 (C) Child molesting (IC 35-42-4-3).
- 5 (D) Child exploitation (~~IC 35-42-4-4(b) or IC 35-42-4-4(c)~~);
- 6 **(IC 35-42-4-4).**
- 7 (E) Vicarious sexual gratification (IC 35-42-4-5).
- 8 (F) Child solicitation (IC 35-42-4-6).
- 9 (G) Child seduction (IC 35-42-4-7).
- 10 (H) Sexual misconduct with a minor (IC 35-42-4-9) as a:
- 11 (i) Class A felony, Class B felony, or Class C felony for a
- 12 crime committed before July 1, 2014; or
- 13 (ii) Level 1, Level 2, or Level 4 felony, for a crime
- 14 committed after June 30, 2014.
- 15 (I) Incest (IC 35-46-1-3).
- 16 (J) Sexual battery (IC 35-42-4-8).
- 17 (K) Kidnapping (IC 35-42-3-2), if the victim is less than
- 18 eighteen (18) years of age.
- 19 (L) Criminal confinement (IC 35-42-3-3), if the victim is less
- 20 than eighteen (18) years of age.
- 21 (j) The maximum amount of educational credit a person may earn
- 22 under this section is the lesser of:
- 23 (1) two (2) years; or
- 24 (2) one-third (1/3) of the person's total applicable credit time.
- 25 (k) Educational credit earned under this section by an offender
- 26 serving a sentence for stalking (IC 35-45-10-5), a felony against a
- 27 person under IC 35-42, or for a crime listed in IC 11-8-8-5, shall be
- 28 reduced to the extent that application of the educational credit would
- 29 otherwise result in:
- 30 (1) postconviction release (as defined in IC 35-40-4-6); or
- 31 (2) assignment of the person to a community transition program;
- 32 in less than forty-five (45) days after the person earns the educational
- 33 credit.
- 34 (l) A person may earn educational credit for multiple degrees at the
- 35 same education level under subsection (d) only in accordance with
- 36 guidelines approved by the department of correction. The department
- 37 of correction may approve guidelines for proper sequence of education
- 38 degrees under subsection (d).
- 39 (m) A person may not earn educational credit:
- 40 (1) for a general educational development (GED) diploma if the
- 41 person has previously earned a high school diploma; or
- 42 (2) for a high school diploma if the person has previously earned



a general educational development (GED) diploma.

(n) A person may not earn educational credit under this section if the person:

(1) commits an offense listed in IC 11-8-8-4.5 while the person is required to register as a sex or violent offender under IC 11-8-8-7; and

(2) is committed to the department of correction after being convicted of the offense listed in IC 11-8-8-4.5.

(o) For a person to earn educational credit under subsection (a)(3)(B) for successfully completing the requirements for a high school diploma through correspondence courses, each correspondence course must be approved by the department before the person begins the correspondence course. The department may approve a correspondence course only if the entity administering the course is recognized and accredited by the department of education in the state where the entity is located.

~~(p) The department of correction shall, before May 1, 2023, submit a report to the legislative council, in an electronic format under IC 5-14-6, concerning the implementation of the individualized case management plan. The report must include the following:~~

~~(1) The ratio of case management staff to offenders participating in the individualized case management plan as of January 1, 2023.~~

~~(2) The average number of days awarded to offenders participating in the individualized case management plan from January 1, 2022, through December 31, 2022.~~

~~(3) The percentage of the prison population currently participating in an individualized case management plan as of January 1, 2023.~~

~~(4) Any other data points or information related to the status of the implementation of the individualized case management plan.~~

~~This subsection expires June 30, 2023.~~



COMMITTEE REPORT

Mr. Speaker: Your Committee on Courts and Criminal Code, to which was referred House Bill 1303, has had the same under consideration and begs leave to report the same back to the House with the recommendation that said bill be amended as follows:

Page 19, line 32, delete "or".

Page 19, line 39, after "conduct;" insert "**or**

(5) produces or creates an image containing sexual conduct by a child less than eighteen (18) years of age, or who appears to be a child less than eighteen (18) years of age;".

Page 19, line 40, strike "Level 5 felony," and insert "**Level 4 felony,**".

Page 20, line 24, delete "Level 4 felony" and insert "**Level 3 felony**".

Page 20, line 29, delete "age;" and insert "**age, or who appears to be a child less than twelve (12) years of age;**".

Page 20, line 38, delete "Level 3 felony" and insert "**Level 2 felony**".

Page 22, line 17, strike "disseminate" and insert "**distribute**".

Page 22, line 32, strike "disseminates" and insert "**distributes**".

Page 22, line 38, strike "dissemination" and insert "**distribution**".

Page 24, line 36, delete "Level 5 felony" and insert "**Level 4 felony**".

Page 24, line 41, delete "age;" and insert "**age, or who appears to be a child less than twelve (12) years of age;**".

Page 25, line 20, delete "Level 4 felony" and insert "**Level 3 felony**".

Page 25, line 25, delete "age;" and insert "**age, or who appears to be a child less than twelve (12) years of age;**".

Page 26, line 11, delete "disseminate" and insert "**distribute**".

Page 26, line 26, delete "disseminates" and insert "**distributes**".

Page 26, line 32, delete "dissemination" and insert "**distribution**".

and when so amended that said bill do pass.

(Reference is to HB 1303 as introduced.)

MCNAMARA

Committee Vote: yeas 13, nays 0.

HB 1303—LS 6764/DI 106



HOUSE MOTION

Mr. Speaker: I move that House Bill 1303 be amended to read as follows:

Page 28, between lines 12 and 13, begin a new paragraph and insert:

"(I) It is a defense to a prosecution under this section that the person:

(1) possessed less than three (3) images prohibited by this section; and

(2) promptly and in good faith, and without retaining or allowing any person, other than a law enforcement agency, to access a prohibited image or a copy of a prohibited image:

(A) took reasonable steps to destroy each prohibited image; or

(B) reported the matter to a law enforcement agency and afforded that agency access to each prohibited image."

(Reference is to HB 1303 as printed January 14, 2026.)

BASCOM

HOUSE MOTION

Mr. Speaker: I move that House Bill 1303 be amended to read as follows:

Page 32, between lines 20 and 21, begin a new line block indented and insert:

"(22) A child sexual abuse material offense (IC 35-42-4-4.5)."

(Reference is to HB 1303 as printed January 14, 2026.)

ZIMMERMAN

